



Appeal Decision

Site visit made on 23 July 2026

by Ann Veevers BA(Hons) PGDip(BCon) MRTPI

an Inspector appointed by the Secretary of State

Decision date: 2nd September 2026

Appeal A Ref: 6005980

6 Bacon's Lane, London N6 6BL

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr Amos Manasseh against the decision of the Council of the London Borough of Camden.
 - The application Ref is 2025/4935/P.
 - The development proposed is demolition of existing sheds to be replaced with garden studio.
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Appeal B Ref: 6005981

6 Bacon's Lane, London N6 6BL

- The appeal is made under section 20 of the Planning (Listed Buildings and Conservation Areas) Act 1990 against a refusal to grant listed building consent.
 - The appeal is made by Mr Amos Manasseh against the decision of the Council of the London Borough of Camden.
 - The application Ref is 2025/5133/L.
 - The development proposed is demolition of existing sheds to be replaced with garden studio.
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Decisions

Appeal A Ref: 6005980

1. The appeal is dismissed.

Appeal B Ref: 6005981

2. The appeal is dismissed.

Preliminary Matters

3. The appeals concern the same site. Although the remit of planning permission (Appeal A) and listed building consent (Appeal B) regimes are different, to reduce repetition, I have dealt with both appeals together in a single decision letter.
4. The Council's reason in refusing Appeal B only references perceived harmful effects on the significance of the listed building. Nevertheless, both main parties have commented on the potential effects of the proposal on the character and appearance of the conservation area as part of their evidence, which is also cited as a reason for refusal in Appeal A. Consequently, I am satisfied that neither party would be prejudiced by me considering this issue as part of the determination of both appeals as required by section 72(1) of the Planning (Listed Buildings and Conservation Areas) Act 1990 (as amended) (the Act). As the site relates to a listed building, I have also had special regard to sections 16(2) and 66(1) of the Act.

5. During the appeal process, the Government published a new version of the National Planning Policy Framework (the Framework)¹, upon which the parties were given the opportunity to comment. I have taken the new Framework and any responses received into account in my determination of the appeals.

Main Issues

6. The main issues are whether the proposal would preserve the Grade II listed building known as '6, Bacon's Lane with attached steps'², or its setting or any features of special architectural or historic interest which it possesses; and whether the proposal would preserve or enhance the character or appearance of the Highgate Conservation Area.

Reasons

Listed building and conservation area - special interest and significance

7. The appeal building, 6 Bacon's Lane (No 6) dates from the late 1950s and was designed and built by the distinguished architect Leonard Manasseh as his family's home. No 6 is one of three houses he designed on the site of a large Victorian house. It sits on the former kitchen garden of the house in an elevated position overlooking Highgate Cemetery. The list entry notes it ranks amongst the most notable private houses of the times and was Manasseh's first work in the emerging New Brutalist genre. Constructed in salvaged stock brick with exposed concrete floors, an unequal asbestos slate roof which includes a dormer and a stove pipe, it is a distinctive two storey, plus attic, detached house standing in a walled garden.
8. No 6 is widely considered to be a good example of a small-scale, economically built family home. This is evidenced by the clever use of interior floorspace with small hallways but generous-sized living areas flooded by natural light from large windows with a plan form over multiple levels. The wealth of contemporary fixtures and fittings reflective of the fashion of the times and the re-purposing of materials within the house such as black brick, floors of salvaged marble washstands and timber boarding showcase the ingenuity and creativity of its architect owner.
9. The appellant's Heritage Statement and Impact Assessment³, sets out the property's phased evolution and I share the view that No 6 exhibits Modernism with a delicacy and lightness of touch influenced by Corbusier's use of raw materials. Insofar as it relates to this appeal, and given the evidence before me, I consider the appreciation and significance of No 6 largely derives from its exemplar artistic, architectural and historic association with the prominent architect Manasseh who has influenced its New Brutalist design and development. The building's surviving fabric both internal and external, the legibility of its plan form and the architectural and functional hierarchy between its component parts as well as between the floors and rooms/spaces within them are all important contributors to its special interest and significance.
10. Highly pertinent to the appeal, special interest and significance also stem in part from the setting of No 6 and the contribution it makes to the composition and historic value of the site as a whole. Its immediate setting comprises of a largely rectangular walled garden that includes two timber sheds, a sunken garden with

¹ National Planning Policy Framework, Plan-making and national decision-making policies, August 2026.

² National Heritage List for England, List Entry Number: 1393412

³ Heritage Statement and Impact Assessment, Jon Wright M.A, dated August 2025.

decorative brick paving and a sculpture. The sculpture is a replica of a Grade II listed tall, experimental Portland cement-cast figurative sculpture known as “youth’ Sculpture on Circular Brick Plinth in the Garden”⁴ (the Sculpture) that once stood in the same position in the garden. Whilst it was in the garden, the Sculpture had special interest because of its artistic association with the eminent British sculptor Daphne Hardy Henrion who was commissioned by Manasseh to provide a sculpture for the entrance to a restaurant building he designed for the 1951 Festival of Britain, which was then relocated to the garden of No 6. Evidence indicates the Sculpture is now in the permanent care of conservators.

11. The garden is said to have been designed at the same time as the house, was listed at the same time, and is integral to the planned interplay between external and internal spaces. It was extended in the 1970s to incorporate a strip of land to the east, which previously formed part of a horticultural nursery. As a result, much of the historic eastern brick boundary wall was demolished, save for a small section adjacent to the current timber sheds. Nonetheless, the mature garden, including the varied paving materials used, remains largely intact and well-maintained. As such, it and many of the features within it, have historic, functional, physical and visual links with the listed building, all of which contribute greatly to both its significance as an asset, as well as the ability to appreciate that significance.
12. The wider setting of No 6 has been compromised to a degree by the proximity of an aesthetically unremarkable terrace of 20th century residential development to the east, altering how the asset is experienced and moderating the contribution this aspect of its setting makes to its significance. Nonetheless, the neighbouring Highgate cemetery, located at a lower ground level alongside the garden’s southern boundary wall affords occupants of No 6 extensive views over the low historic garden boundary wall towards the densely wooded cemetery. This, and the predominantly open garden land towards the spire of St Michael’s Church to the west and towards Highgate United Reford Church to the north, provide a spacious and verdant setting to No 6, which contributes in a positive way to its significance.
13. Highgate Conservation Area (CA) encompasses, what is described in the Council’s Highgate Conservation Area Appraisal and Management Proposals (undated) (HCAAMP) as a ‘close-knit village crowning one of the twin hills to the north of London.’ The HCAAMP highlights the area’s unified character, generally drawn from the mostly high quality architecture of buildings, their relationship with open spaces, topography and vegetation. The area has a special village charm and strong sense of place.
14. From the submitted information and my own observations, I consider that the significance of the CA insofar as relevant to this appeal, is derived in part from its historic and architectural interests. Important contributors in this regard are the diversity of built fabric, its high proportion of historic buildings and areas of maturely landscaped green spaces all shaped by the topography of the area.
15. Bacon’s Lane is identified in the HCAAMP as an area developed in the 1950’s on the site of a garden and orchard of a 19th century house. Whilst each house on this narrow lane has a distinct style, the group as a whole is cohesive due to their

⁴ National Heritage List for England, List Entry Number: 1383413

commonality of age, low-height and sense of spaciousness. The backdrop of trees, particularly those within Highgate Cemetery all contribute to the pleasant and verdant surroundings of this part of the CA. Being designed and built by an eminent architect as one of only eight unique detached houses in the cul-de-sac, the appeal property, along with its designed garden, positively contributes to the character and appearance of the CA as a whole, and thereby to its significance as a designated heritage asset.

Proposals and effects

16. The proposal seeks the removal of two timber sheds currently sited close to the east elevation of No 6 which, from the available evidence, appeared to be on the site when No 6 was listed in 2009. They would be replaced by an outbuilding which would straddle a paved area of garden adjacent to the boundary wall with 103 Swain's Lane and part of the footprint of the sheds. The proposed outbuilding would have a roughly square footprint and would incorporate the section of brick wall that formed part of the historic boundary to the garden as an internal feature.
17. There is no disagreement between the parties that the existing timber sheds do not make a positive contribution to the special interest of No 6. The appellant contends they make a negative contribution, but I do not find that to be the case. Together, their overall size, low profile and materials are in keeping with their ancillary garden-store use. Furthermore, their location close to the east-facing elevation of No 6, on the site of the former historic greenhouse, lead me to conclude that the sheds have a neutral effect on the significance of No 6.
18. The removal of the sheds would reduce visual clutter around the house. Even if the east-facing elevation of No 6 is not a key elevation, as suggested by the appellant and the Twentieth Century Society⁵ (the Society), their removal would better reveal this elevation and improve the legibility and appreciation of its designed garden, thereby enhancing its setting and thus its significance.
19. However, it does not follow that by removing the sheds and replacing them with a larger building positioned further from the east-facing elevation would have the same relationship with No 6 or a similar effect on its setting. I recognise not all parts of the building or its setting are of equal significance. I also agree that the aesthetic value of the east-facing elevation is more modest than that of the south and west-facing elevations and the lower, eastern section of garden is of less significance as a recent addition, so could potentially accommodate change. Nonetheless, in this case, I am mindful of the context of a designed domestic garden which makes a highly positive contribution to the significance of No 6 and which is therefore particularly sensitive to change.
20. At present, the linear form of the two sheds, tightly positioned between the house and the historic garden wall, together with their subservient roof form mean that they are relatively visually unobtrusive buildings.
21. By contrast, the wide and tall form of the proposed outbuilding would be a bulky and incongruous outbuilding. Despite the introduction of a glass lantern to limit the ridge height and provide light into the building, I find it jars with the overall design of the roof, which to my mind is top-heavy and neither reflects the New Brutalist architecture of No 6 nor is of a contemporary discrete form. As such, this aspect of

⁵ Appendix JP7 of the JPA 'Appellants Full Statement of Case' dated 5 March 2026.

the proposal does not achieve the elegant clarity that the appellant seeks to achieve. Rather, the introduction of a markedly different pyramidal roof-form with a flat-topped roof lantern to that of the asymmetrical main house and the flat-roof garage would lead to some stylistic confusion of built form within the limited space afforded in this domestic setting.

22. While the roof of the outbuilding may well have been based upon designs used elsewhere by Manasseh, from the evidence presented, those other buildings are not domestic outbuildings within a sensitive garden setting. Therefore, the contexts of those sites are materially different to the appeal before me.
23. The proposed outbuilding would extend over different levels and include studio space, bathroom facilities and a small sauna. It would be constructed using timber, brick and glass with fibre-cement roof tiles which would harmonise with the character of No 6 and its garden setting. The window and door surrounds at No 6 are black and white aluminium and although those proposed in the outbuilding would be dark grey, the final details could be agreed through the imposition of appropriately worded conditions in the event the appeals were allowed.
24. However, it is my carefully considered judgement that, due to its height and bulky mass, the proposed outbuilding would be overly large and dominate the gap between No 6 and its boundary wall. It would erode the paucity of meaningful external space that forms an important part of the setting of the listed building. I also find it would compete with the primacy of No 6, disrupting the hierarchy of built form within the appeal site as a whole to a harmful degree. As a result, the visual and spatial aspects to how No 6 is experienced, particularly from within its immediate setting of the garden, would be diminished, detracting from the ability to appreciate its heritage merit.
25. To a certain extent, this harm would be further exacerbated by the incorporation of the historic brick wall as an integral part of the outbuilding insofar as it would no longer be clearly visible from within the garden as evidence of the historic boundary, therefore its authenticity would be weakened despite it being in poor condition. Moreover, there is a notable deficiency of information in the submitted plans in terms of how much of the wall would be retained, repaired and incorporated into the building. To avoid doubt about what is proposed and to enable a meaningful assessment, it is imperative that drawings are accurate and unambiguous, and that sufficient detail is provided. This deficiency is highly undesirable in general terms, but even more so given the building's Grade II listed status, which add to my concerns above.
26. The form and design of No 6, together with the services of specialist professionals have informed the proposal and I note the letter of support from the Society. Be that as it may, it does not overcome the harm I find as a result of the jarring scale and form of the proposal, the position of which would not conserve No 6 in a manner appropriate to its significance.
27. Drawing the above together, I conclude that, as a result of its scale and design, the proposal would diminish the enduring legibility and relationship between the listed building and its exterior spaces. That the existing sheds would be removed and the historic wall retained does not clearly justify the harm to this aspect of the building's identified heritage interests. Consequently, the proposal would fail to

preserve No 6, its setting, or any features of special architectural or historic interest which it possesses. This would be contrary to the requirements of sections 16(2) and 66(1) of the Act. As a result, the proposal would harm the special interest and significance of this designated heritage asset.

28. Turning to the CA, while listed buildings are safeguarded for their inherent architectural and historic interest irrespective of whether or not public views are afforded, the significance of a conservation area is dependent upon how it is experienced. Policy HE9.2 of the Framework recognises that not every element of a conservation area necessarily contributes to its significance. Case law has established that proposals must be judged according to their effect on a conservation area as a whole.
29. In this case, the proposal would not be readily visible from the public domain since it would be partially screened by vegetation and the existing boundary wall. As a result, several key aspects of the CA's character and appearance would not be affected by the proposal. Nevertheless, the HCAAMP identifies that many large gardens contribute to the informal landscape setting and rural atmosphere which is an important part of the character of the CA. It also sets out that the legacy of the former garden (of the previous 19th century house) is reflected in the spacious feel and minimal separation between properties, both of which contribute in a positive way to the distinctive character of Bacon's Lane. In this regard, the lack of prominence of the outbuilding from public vantage points does not override my duty to have special regard to the desirability of preserving or enhancing the character or appearance of the CA.
30. The sizeable pyramidal roof of the proposed outbuilding would project above the boundary wall and would be visible from the rear upper floor windows and garden of 103 Swain's Lane (No 103). Moreover, as I have set out above, its overall form and scale, would result in a building that would diminish the spatial composition and sense of openness within the garden and would be at odds with the adjacent flat-roofed Swain's Lane terrace, the outbuilding at No 103 and 7 Bacon's Lane.
31. The proposed outbuilding would harm the aesthetic and heritage interests of an integral element of the CA, which supports and reinforces some of the key qualities of its significance. Whilst the harm would be localised and limited given the nature and location of the proposal, such negative impacts can cumulatively erode the overall quality of CA as a whole. For these reasons, the proposal would not preserve or enhance the character or appearance of the CA. It would have a negative effect on the significance of the CA, contrary to section 72(1) of the Act.

Public Benefits and Heritage Balance

32. Policy HE4.2 of the Framework sets out that any harm to, or loss of, the significance of a designated heritage asset (including from development within its setting) should have a clear and convincing justification. Policy HE6.1 of the Framework states that when considering the potential effect of a development proposal on the significance of a designated heritage asset, substantial weight should be given to the asset's conservation, irrespective of whether any potential effect amounts to a positive effect, harm, substantial harm, or total loss of its significance.
33. As I have set out above, I find the effect on the significance of No 6 and the CA that would result from the proposal would amount to harm to each of these

designated heritage assets. Mindful of advice in Planning Practice Guidance (PPG) which directs that the extent of harm within each category of harm should be clearly articulated, and given the nature and extent of the works, I deduce the harmful effects in this case would be towards the lower end of harm. Nevertheless, any harm is a matter of considerable importance and weight. As such, Policy HE6.4 goes on to say that the effect on the asset and its significance should be weighed against any public benefits resulting from the proposal.

34. Taking this into account, along with what is stated to constitute a public benefit within the PPG⁶, it is reasonable to conclude that the proposal would generate economic benefits in the construction phase and social benefits in an improvement to the local housing stock. Environmental benefits would accrue through the installation of an air source heat pump (ASHP), and thus a reduction in the building's carbon emissions and enhancement of its environmental sustainability.
35. I accept that these outcomes would facilitate the delivery of objectives of the planning system to optimise flexible, energy efficient homes, and to create modern, larger family accommodation in an accessible location, making effective use of land as outlined in the Framework. These factors would represent benefits to the public at large. However, the proposal would remain as a single dwelling, and the extent of the benefits is tempered by the domestic scale of the proposal and absence of detailed information in relation to the ASHP, whether it relates solely to the outbuilding or would also be associated with the main house. I am also not convinced that the only way of securing the public benefits identified above would be via the appeal proposal. Nonetheless, I attribute these benefits limited weight in favour of the appeal.
36. The sheds would be removed and as I indicate above, that in itself would be a heritage benefit. However, they would be replaced by development that would be more harmful. As such, this factor carries no weight as a benefit of the proposal in its totality. Similarly, a historic wall would be restored and would form part of an internal wall of the proposed outbuilding. However, few details have been provided in relation to this matter which limits the positive weight I attribute to this benefit.
37. There is no evidence before me which demonstrates that the proposal is necessary to secure the listed building's ongoing residential use or that its conservation or that of the CA as designated heritage assets would be at risk if the appeal was to fail and the proposal, as submitted, was not implemented. In all of the above respects, clear and convincing justification has not been provided for the identified harm to the significance of the designated heritage assets.
38. On balance, in accordance with Policy HE6.3 of the Framework, in giving considerable importance and weight to the harm to the significance of the designated heritage assets, I find that this would not be outweighed by the limited public benefits that would be generated by the proposal.
39. I therefore conclude that the proposal would fail to preserve the Grade II listed building, '6, Bacon's Lane with attached steps', or its setting or any features of special architectural or historic interest which it possesses; and it would fail to preserve or enhance the character or appearance of the CA. As such, it would conflict with the statutory presumptions set out in sections 16(2), 66(1) and 72(1)

⁶ Planning Practice Guidance Paragraph: 020 Reference ID: 18a-020-20190723.

of the Act; and the provisions within the Framework which seek to conserve and enhance the historic environment.

40. The proposal would also conflict with Policies D1 and D2 of the Camden Local Plan 2017 which, insofar as they are relevant to this appeal, I find to be consistent with the Framework. These policies, amongst other things, require development to be of high quality design that respects local context and character and preserves or enhances Camden's rich and diverse heritage assets.

Other Matters

41. The appellant claims that the Council has not been consistent in its decision-making and draws my attention to a previous permission granted on the site in 2013 for a 'single storey 2-bedroom residential granny flat ancillary to No.6 Bacon's Lane (Class C3)'⁷ (the 2013 permission). From the limited evidence before me, the footprint of building referred to in this scheme is larger than the appeal proposal, it extends into the southern section of garden, and the sheds are retained. However, it is a narrow, linear building located solely upon the additional garden land not forming part of the historic boundary of the previous property. In any event, this permission has not been implemented and therefore cannot constitute a fallback position.
42. Nonetheless, the principle of consistency in decision making is an important one. That said, each decision turns on the facts and circumstances of that particular case at the time of the application. In this respect, I am mindful that, since the 2013 permission there have been material changes to the decision making context at both a local and national level. Consequently, the details of the 2013 permission and the context of its determination is not directly comparable and does not indicate that the proposals before me should be allowed.
43. The appellant's submissions refer to other nearby Grade II listed buildings⁸. From the information before me and my observations on site, the special interest and significance of these varied assets primarily stem from their historic and architectural interest, and in the case of Highgate Cemetery, which is also a Grade I Registered Park and Garden, also to its artistic interest. Given the location and extent of the proposed scheme, I find that the settings of these listed buildings would be preserved and their significance would not be harmed. This would meet the requirements of section 66(1) of the Act. Nonetheless, a lack of harm in relation to these designated heritage assets is a neutral consideration and does not alter my conclusion on the main issues.
44. I note that the proposal is a revised scheme which seeks to overcome the Council's concerns in relation to previous schemes submitted by the appellant at pre-application and application stage. I also note the substantial investment the appellant has made into the property. However, for the reasons stated above, I consider the revised scheme to be harmful.
45. The appellant has raised concerns regarding how the applications were dealt with by the Council, with particular reference to the length of time taken overall for the iteration of the proposal submitted in the applications to be determined and in its assessment of the proposals. However, of themselves, these matters are not

⁷ Camden Council Ref: 2012/1679/P, granted subject to a planning obligation on 3 June 2013

⁸ Section 2.2.2 of the appellant's 'Heritage Statement and Impact Assessment', Jon Wright M.A, dated August 2025

within the scope of my considerations in the context of the appeals before me as I have only had regard to the planning and conservation merits of the proposal within the existing legislative and planning policy context.

Conclusions

Appeal A Ref: 6005980

46. The proposed development would conflict with the Act and the development plan. There are no material considerations, including the Framework, which indicate that the decision should be made other than in accordance with the development plan. Therefore, for the reasons given, I conclude that Appeal A should be dismissed.

Appeal B Ref: 6005981

47. For the reasons given, I conclude that Appeal B should be dismissed.

Ann Veevers

INSPECTOR